

IN THE [COURT HAVING JURISDICTION IN THIS MATTER – CRIMINAL, CIRCUIT OR GENERAL SESSIONS COURT; CONFIRM FROM YOUR OWN RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN RECORD] COUNTY, STATE OF TENNESSEE

STATE OF TENNESSEE,
Plaintiff,

v.

JOHN DOE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

PETITION FOR EXPUNCTION AFTER SUCCESSFUL COMPLETION OF PRETRIAL DIVERSION, PURSUANT TO T.C.A. § 40-32-106(d)

STATUTORY AUTHORITY

T.C.A. § 40-32-106(d)(1) – On successful completion of a pretrial diversion programme the charges are dismissed, and the person may then petition for expunction of the public records where the charges were dismissed as a result of that successful completion. A petition is required; expunction is not automatic.

T.C.A. § 40-32-106(d)(2) – Bars expunction where the diverted offence was a sexual offence or a violent sexual offence as defined by the registration statute.

T.C.A. § 40-32-106(d)(3) – Requires the appropriate clerk's fee, so unlike a straight dismissal this route is not free.

T.C.A. §§ 40-15-102 through 40-15-107 – The pretrial diversion scheme under which prosecution is suspended by memorandum of understanding with the district attorney general; the person does not plead guilty and is not found guilty.

T.C.A. § 40-32-102(c) – The certificate requirement, which applies on this route because the exemption for expunctions under the non-conviction section is carved back where the expunction resulted from successful completion of diversion.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the court having jurisdiction in the previous action in Sample County (synthetic sample venue), State of Tennessee, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Sample County (synthetic sample venue), State of Tennessee.

II. PARTIES

3. Petitioner is JOHN DOE, whose address is 1000 Sample Street, Nashville, TN 37203.

4. Plaintiff is the State of Tennessee.

III. FACTS AND CASE HISTORY

5. On or about 02/17/2022, Petitioner was charged with Charge placed on pretrial diversion by memorandum of understanding with the district attorney general (synthetic sample charge) by Sample County Sheriff's Office (synthetic).

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. On 06/03/2024, the matter was resolved with the following disposition: Diversion

successfully completed and the charges dismissed (synthetic sample disposition).

8. The offense grade was: Misdemeanour (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for expunction on the following basis: expunction under T.C.A. § 40-32-106(d)(1) (Petitioner states the charges were dismissed as a result of successful completion of a pretrial diversion programme).

10. Petitioner states the case was placed on pretrial diversion under a memorandum of understanding with the district attorney general, that Petitioner did not plead guilty and was not found guilty, and that the charges were dismissed on successful completion (synthetic sample answer).

11. Petitioner states the diverted offence was not a sexual offence or a violent sexual offence as defined by the registration statute (synthetic sample answer).

12. Petitioner states no earlier petition for expunction has been filed in this case (synthetic sample answer).

13. Petitioner understands that the appropriate clerk's fee applies to this Petition and that the certificate from the state bureau is required before an order may be entered.

14. State control number: [STATE CONTROL NUMBER – READ FROM YOUR OWN CRIMINAL HISTORY AND ENTER IT HERE BEFORE FILING].

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the expunction of all public records of the charges dismissed on successful completion of pretrial diversion in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to remove and destroy all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, state that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JOHN DOE
1000 Sample Street, Nashville, TN 37203

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

ATTACHMENTS

Attachments submitted with this petition:

- [ANY DOCUMENT THE PARTICIPANT CHOOSES TO FILE IN SUPPORT – PARTICIPANT ENCLOSES COPIES ONLY]

Prepared by petitioner using LegalEase RCAP. This is not an official court form.